IN THE COURT OF THE HON'BLE V ADDITIONAL DISTRICT JUDGE
AT COIMBATORE

O.S. No. 20 of 2024

G Square Realtors Private Limited,
Represented by its Authorised Representative,
Mr. T.Prabhakaran,
Flat No.14, 3rd Floor, Harrington Apartment,
No.19, Harrington Road,
Chetpet, Chennai – 600 031.

…Plaintiff

Versus

1. D.Senthilkumar,
aged 53 years,
S/o. Dhuruvakumar,
Door No.A-11, Srivari Brindhavan,
MG Road, Avarampalayam,
Coimbatore – 641 006.

2. B.Sabarinath,
aged 52 years,
S/o. Baskaran,
No.401, Raja Street,
Coimbatore – 641 001.

…Defendants

JOINT COMPROMISE MEMO

The parties to the suit humbly submit as follows:

1. That the defendants are the absolute owners of the land admeasuring an extent of 3.22 Acres, comprised in Survey Nos. 397/1 and 400/1B1 of Madukkarai Village, Coimbatore District, more fully described in Schedule-A mentioned hereunder, along with the adjacent land measuring 3.94 Acres, comprised in Survey Nos. 396/1 and 396/2 of Madukkarai Village, Coimbatore District, totally admeasuring an extent of 7.16 Acres, having purchased the same by way of a Sale Deed dated 29.03.2012, registered as Document No. 1873 of 2012, on the file of the Sub Registrar, Madukkarai.

2. Whereas, the plaintiff agreed to purchase the entire land from the defendant for a total price of Rs.16,99,00,000/- and paid an advance amount of Rs.1,00,00,000/- on that date to the defendants. Whereas, the plaintiff alleged that it was oral arrangement and the defendants stated that there were Term Sheet entered into between both parties to that effect.

3. Whereas, the plaintiff subsequently informed that they got approval to form a layout of house sites over the A Schedule property herein named Western Ghats Phase I (RERA registration No.TN/11/Layout/3111/2023) with plots 1 to 77 as morefully described hereunder in Schedule B as First Phase.

4. Whereas, in pursuance of which, at request of plaintiff, the defendants also settled an extent of 5213.73 sq.mt. of land out of Schedule A property in favour of the Commissioner, Madukkarai Municipality towards formation of roads, parks and other public purposes by way of a Gift Deed dated 22.06.2023, registered as Document No. 5027 of 2023, on the file of the Sub Registrar, Madukarai, leaving behind an extent of about 7836.27 sq.mts. out of schedule A mentioned property which are to be conveyed in favour of the plaintiff or its nominees as 1 to 77 plots more fully described in the Schedule-B mentioned hereunder.

5. Whereas, the plaintiff also paid another sum of Rs.2,00,00,000/- all totaling they paid Rs.3,00,00,000/- as advance money and at this juncture, the plaintiff expressed its willingness to retain the project in Schedule A property herein measuring 3.22 acres as aforesaid.

6. In the above circumstances, owing to certain miscommunication between the parties hereto through exchange of Legal Notices, the above sale transaction could not be completed and the plaintiff had preferred the above suit seeking to direct the defendants to convey the Schedule-B mentioned property to the plaintiff or its nominees by due execution and registration of the Sale Deed. Further, after instituting the suit, the plaintiff had also preferred a complaint before the Madukkarai Police Station as against the defendants and others, which has been registered as Crime No.521 of 2023 dated 19.12.2023 and the investigation is still pending.

7. In the above circumstances, without going into the merits and demerits of the respective claims raised by the parties, with a view to give quietus to the issue in an amicable manner, the parties deem it fit to enter into this compromise under the terms and conditions mentioned below.

A. The defendants shall convey the schedule-B mentioned property in favour of the plaintiff or its nominee(s) for a total sale consideration of Rs.7,39,75,156/- (Rupees seven crores thirty nine lakhs seventy five thousand one hundred and fifty six only), out of which a sum of Rs.3,00,00,000/- (Rupees three crores only) has already been paid to the defendants.

B. The defendants shall execute absolute sale deed(s) or power of attorney deed(s) in respect of the schedule B mentioned property in favour of the plaintiff or its nominee(s), as may be required by the plaintiff, upon receipt of the balance sale consideration of Rs.4,39,75,156/- (Rupees four crores thirty nine lakhs seventy five thousand one hundred and fifty six only).

C. Upon receipt of the balance sale consideration of Rs.4,39,75,156/- (Rupees four crores thirty nine lakhs seventy five thousand one hundred and fifty six only), the defendants shall hand over the original parent documents viz., Sale Deed dated 23.03.2005 bearing Document No. 820 of 2005 and Sale Deed dated 23.03.2007 bearing Document No. 1747 of 2007 covering 3.22 acres and revenue records pertaining to the above mentioned property to the plaintiff and extend their absolute co-operation in completing the sale of the developed plots to the plaintiff's customers in all manner, including issuance of life certificates and producing all necessary documents, including the original Sale Deed dated 29.03.2012, registered as Document No. 1873 of 2012, on the file of the Sub Registrar, Madukkarai for verification only that may be necessary for better assuring the title of the said property or for smooth completion of the registration of the plots forming part of the Schedule-B mentioned hereunder.

D. The defendants shall bear any levy/ duty/ charge/ fee/ rates/ taxes and other outgoings that may be imposed/ enforced by the State/Central Laws or Order of any

statutory body/Authority arising out of the above said transaction as per the applicable legal provisions.

E. The defendants are at liberty to use Phase I layout roads to access their remaining 4.00 acres of land in S.F.No.396/1 and 396/2 of Madukkarai Village, Coimbatore lying adjoining to Phase I.

5. Subject to compliance of the above terms and conditions by the defendants, the plaintiff does hereby agree to co-operate for amicable closure of the criminal case pending in Crime No. 521 of 2023, on the file of the Madukkarai Police Station by consenting for withdrawal/ compounding/ quashing of the said proceedings, as may be required by the defendants.

6. The parties hereto agree that the cost incurred by them in the legal proceedings shall be borne by the respective parties and the plaintiff shall be entitled to seek refund of the court fee paid in the above suit as prescribed.

It is therefore humbly prayed that this Hon'ble Court may be pleased to record the terms of the above compromise and dispose off the above suit as settled out of Court and pass such further or other orders as this Hon'ble Court may deem fit and proper in the facts and circumstances of the case and thereby render justice.

Dated at Coimbatore on this the 24th day of April, 2024

1.

2.

DEFENDANTS **PLAINTIFF**

COUNSEL FOR DEFENDANTS **COUNSEL FOR PLAINTIFF**

SCHEDULE OF PROPERTY

Schedule-A

All that piece and parcel of the land admeasuring an extent of 3 Acres 22 Cents (13050 square meter), comprised in Survey No. 397/1 (91 Cents) and Survey No. 400/1B1 (2 Acres 31 Cents), Madukkarai Village, Madukkarai Taluk, Coimbatore District, lying within the limits of Registration sub-district of Madukkarai and Registration District of Coimbatore.

Schedule-B

(Developed plots forming part of Schedule-A)

All that piece and parcel of the land admeasuring a total extent of 7836.27 square meter situated at Plot Nos. 1 to 77, Western Ghats Phase-1 Layout bearing RERA Registration No. TN/11/Layout/3111/2023, comprised in Survey No. 397/1 and Survey No. 400/1B1, Madukkarai Village, Madukkarai Taluk, Coimbatore District, lying within the limits of Registration sub-district of Madukkarai and Registration District of Coimbatore.

Dated at Coimbatore on this the 24th day of April, 2024

1.

2.

DEFENDANTS **PLAINTIFF**

COUNSEL FOR DEFENDANTS **COUNSEL FOR PLAINTIFF**

IN THE COURT OF THE HON'BLE V ADDL. DISTRICT JUDGE AT COIMBATORE

O.S. No. 20 of 2024

G Square Realtors Private Limited
…Plaintiff

Versus

1. D.Senthilkumar
2. B.Sabarinath

…Defendants

JOINT COMPROMISE MEMO

K.SURENDAR
[Ms. 1048 of 2009]
CHENTHOORI PUGAZENDHI
[Ms. 1073 of 2009]
C.A. MOHAN KUMAR
[Ms. 2266 of 2016]

Counsel for Plaintiff
97877 04646